

2017 SCC OnLine All 1979

In the High Court of Allahabad

(BEFORE AMRESHWAR PRATAP SAHI AND RAJIV LOCHAN MEHROTRA, JJ.)

Ram Padarath Gupta Petitioner

v.

U.P. Power Corporation Ltd. and 4 Others
Respondents

Writ - C No. - 40690 of 2017

Decided on September 5, 2017

Counsel for Petitioner:- Anil Kumar Pandey, Deepak Kumar Jaiswal

Counsel for Respondent:- C.S.C., Mahboob Ahmad

1. Heard learned counsel for the petitioner and Sri. Mahboob Ahmad, learned counsel for the Electricity Department.

2. The petitioner has come up challenging the proceedings initiated for realization of certain electricity dues but in the writ petition he has only prayed for a mandamus to decide his objections that has been filed after the recovery citation was issued to him. It is urged that as a matter of fact the petitioner is having a domestic connection of 2KWs and there is no occasion to charge the petitioner on commercial rates as alleged by the respondents orally. The petitioner contends that he had filed objections yet without taking notice of the same the recovery is sought to be made from the petitioner without even adverting to the nature of the objections raised by the petitioner.

3. Sri. Mahboob Ahmad, learned counsel for the respondent/Electricity Department submits that in the event the petitioner files a fresh application before the respondent no. 2 the said claim of the petitioner can be examined and then the petitioner can reasonably know the dues as also the nature of the rates on which the said dues are sought to be recovered from the petitioner.

4. Sri. Mahboob Ahmad further states that the issue of theft being separate, the provisional assessment has to be answered or else the recovery can be made as per the final assessment which according to Sri. Mahboob Ahmad which might have been made.

5. The petitioner has alleged in paragraph no. 15 of the writ petition that he had filed his objections and there being no consideration of the same, there is no final order of assessment and even otherwise it has not been served upon the petitioner. In the aforesaid background keeping in view the nature of the claim and the nature of the connection which is stated to be a domestic connection let matter be

examined by the respondent no. 2 on presentation of the certified copy of this order in accordance with law keeping in view the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005 read with section 126 of the U.P. Electricity Act, 2003 and an order be passed if not already passed after considering the objections of the petitioner within three weeks from today. The recovery proceedings shall be subject to the outcome of such orders to be passed by the Executive Engineer as directed hereinabove.

6. Disposed off.

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